

THE CORPORATION OF THE TOWN OF SMITHS FALLS

BY-LAW NO. 10076-2019

*By-law to Authorize Execution of a Trail Access Agreement with the Rideau Lakes ATV Club respecting seasonal access over the lands described as Con 6 S. Pt. Lot 1 & 2, Conc 5 , North Elmsley (referred to as municipal Compost Site – 3450 Highway 43 W), a portion of the former bed of the Canadian National Railway within the Lombard Street Business Park
(referred to as Cataraqui Trail)*

WHEREAS Section 8 of the Municipal Act, SO 2001, provides that a municipality has the capacity, rights, powers and privileges of a natural person for the purpose of exercising its authority under this or any other Act;

AND WHEREAS Section 9 of the Municipal Act, SO 2001, provides that Section 8 shall be interpreted broadly so as to confer broad authority on municipalities to enable them to govern their affairs as they consider appropriate and to enhance their ability to respond to municipal issues;

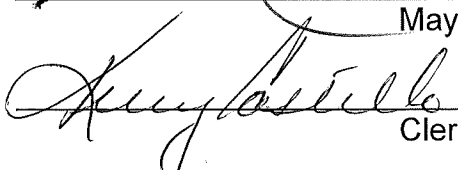
NOW THEREFORE the Council of the Corporation of the Town of Smiths Falls enacts as follows:

1. The Mayor and Clerk be authorized to execute the Trail Access Agreement with Rideau Lakes ATV Club;
2. Schedule "A" (Trail Access Agreement) attached hereto shall be read with and form part of this By-law.
3. The provisions of this by-law shall come into force and take effect on the passing thereof.

Read a first and second time this 3rd day of September, 2019

Read a third time and passed this 3rd day of September, 2019



Mayor


Clerk

Trail Access Agreement

Dated this *3rd* day of *September*, 2019

BETWEEN:

RIDEAU LAKES ATV CLUB

the "RLATVC"

-and-

THE CORPORATION OF THE TOWN OF SMITHS FALLS

The "Municipality"

WHEREAS the Corporation of the Town of Smiths Falls ("Municipality") owns lands referred to as: Con 6. S. Pt. Lot 1 & 2, Conc 5 North Elmsley (compost site - 3450 Highway 43W), and a portion of the former bed of the Canadian National Railway within the Lombard Street Business Park (referred to as Cataraqui Trail);

AND WHEREAS the Rideau Lakes ATV Club ("RLATVC") wishes to use, develop, and maintain portions of the lands for the purpose of a designed off-road vehicle recreational trail for Ontario Federation of All Terrain Vehicle (OFATV) members.

NOW THEREFORE the Parties hereby agree as follows:

Application

1. THAT the agreement applies to the lands under the jurisdiction of the Municipality as outlined in Schedule A to this agreement.

Club Status

2. THAT the RLATV club shall, at all times, maintain its status as a member in good standing with the Ontario Federation of All Terrain Vehicles (OFATV), and be able to verify this to the Municipality with current OFATV membership certificate, or this agreement shall be immediately null and void.

Term of Agreement

3. THAT this agreement shall be valid for a term of two years under a pilot project ending November 30th, 2021. Any further extensions of this agreement beyond that date will otherwise be subject to the review and approval by Town Council.

Occupiers' Liability Act

4. THAT the RLATVC, by way of the agreement, shall become the 'occupier' of the trails used, developed and maintained under this agreement as a recreational trail ('premises') for the purposes of the Occupiers' Liability Act.

Seasonal Uses

5. The RLATVC confirms that ATV uses will cease over the winter season between December 1st and March 31st inclusive each year. This seasonal restriction is otherwise reflective of the terms of use of the Ottawa Valley Recreational Trail, owned and operated by the County of Lanark.

Code of Conduct

6. The RLATVC and its members shall abide by a Code of Conduct for off-road trails that is consistent with the methods and approach for the trail management plan for the Ottawa Valley Recreation Trail. Code of conduct signage shall furthermore be posted at the entry point to all municipally owned lands. This Code of Conduct includes:
 - Non-motorized users have the right-of-way at all times;
 - Respect the privacy of people living along the trail;
 - Respect neighbouring property by staying on the designated trail. Do not make new trails or traverse on unmarked and unauthorized trails;
 - Expect and respect other trail users, obey trail signs;
 - Stay to the right of the trail and pass on the left;
 - Alert slower moving users to your presence, slow down and proceed with caution as you pass them;
 - ATV/Snowmobile users yield to all;
 - Obey all closures and barricades along the trail;
 - Motorized vehicles (other than snowmobiles with a valid Ontario Federation of Snowmobile Clubs "OFSC" are prohibited in the winter season);
 - Leave the trail cleaner than you found it – Please carry out litter;
 - Avoid tree damage. Do not break branches or strip bark off trees;
 - Obey all Federal, Provincial and Municipal regulations pertaining to the operation of your mode of transportation (including, but not limited to, licensing, insurance, age limits, and vehicle condition).

Trail Maintenance / Development

7. The use, development, and maintenance of trails shall be in accordance with the provisions, guidelines, and requirements of the Ontario Federation of All Terrain Vehicle Clubs, as may be amended from time to time, where they do not conflict with a provision of this agreement or applicable law;
8. THAT the RLATVC appropriately signs the recreational trail as per sector best practice in addition to any direction provided by the Municipality. This shall include all necessary signage where the recreational trail intersects with a maintained highway. This may also include indication that the trail is a 'recreational trail' to satisfy the Occupiers' Liability Act.
9. THAT the recreational trail and all signage is to be regularly inspected no less than once per 6-month period by competent persons with the RLATVC. Inspections logs are to be maintained and necessary maintenance shall be carried out without delay.
10. THAT before a trail system is used, developed or maintained, the RLATVC shall give 30 days written notice to the local snowmobile clubs to address any overlapping use and/or coordinate efforts where appropriate.
11. THAT the full cost of implementing and maintaining any of the conditions of this agreement shall be borne by the RLATVC.
12. THAT a condition of the use, development and maintenance of the recreational trail shall be that the RLATVC apply for, and obtain, any and all necessary approvals related to water crossing or alterations in accordance with applicable law. This may include, but is not limited to, approvals from the applicable Conservation Authority or the Ministry of Natural Resources and Forestry.
13. THAT a condition of the use, development, and maintenance of the recreational trail shall be that the trail width be limited to the minimum required width for operational and insurance purposes. This is to limit unnecessary tree removal and to seek to limit unauthorized use by full-sized vehicles.
14. THAT a condition of the use, development, and maintenance of the recreational trail shall be that, on the request of the municipality, the RLATVC be responsible to install an off road vehicle (ORV) only pass-through gate or other barrier where a road allowance intersects with a maintained highway to limit unauthorized use by full-sized vehicles. The design and installation shall be to the satisfaction of the municipality.

15. THAT a condition of the use, development, and maintenance of the recreational trail shall be the RLATVC shall be responsible for cleaning up and disposing of all litter and dumping on the lands or adjacent properties, if accessed by the road allowance, be it from their membership or otherwise.
16. THAT a condition of the use, development, and maintenance of the recreational trail shall be that all wood cut is to be maintained on the site adjacent to the recreational trail, and under no circumstances shall clearing and tree cutting result in individual or club gain, be it financial or otherwise.

Insurance

17. THAT a condition of the use, development, and maintenance of the recreational trail shall be the RLATVC obtaining and maintaining Commercial General Liability Insurance issued on an occurrence basis for an amount of not less than \$5,000,000 per occurrence/\$5,000,000 annual aggregate for any negligent acts or omissions by the Club including members relating to this Agreement. Such insurance shall include, but is not limited to bodily injury and property damage including loss of use; personal injury; contractual liability; premises, property & operations; non-owned automobile; broad form property damage; broad form completed operations; owners & contractors protective; occurrence property damage; products; employees, volunteers and members as Additional Insured(s); contingent employers liability; cross liability and severability of interest clause. Such insurance shall add the Corporation of the Town of Smiths Falls as an Additional Insured. This insurance shall be non-contributing with an apply as primary and not as excess of any insurance available to the Municipality.
18. THAT a condition of the use, development, and maintenance of the recreational trail shall be the RLATVC obtaining and maintaining automobile insurance with respect to owned or leased vehicles used directly or indirectly in the performance of the services (use of licensed vehicles) covering Third Party liability for bodily injury, death and damage to property with a limit of not less than \$2,000,000 inclusive for each any every loss.
19. THAT the policies shown above shall not be cancelled unless the Insurer notifies the Municipality in writing at least thirty (30) days prior to the effective date of the cancellation. The insurance policy will be in a form and with a company which are, in all respects, acceptable to the Municipality.
20. THAT it is further noted that any and all deductibles applicable to the above noted insurance policies shall be at the sole responsibility of the RLATVC and the Municipality shall not be liable for any deductibles.

21. THAT it is acknowledged that the Municipality is entitled to request any changes and/or additions to insurance requirements that it deems necessary, at its sole discretion, during the life of this agreement. The RLATVC will provide evidence of compliance with any requested changes and/or additions within 10 business days.
22. THAT the RLATVC shall provide proof of insurance upon execution of this agreement annually by January 15th of each year thereafter.
23. THAT the RLATVC shall indemnify and hold the Municipality, harmless from and against any liability, loss, claims, demands, cost and expenses, including reasonable legal fees, occasioned wholly or in part by any negligence acts or omissions whether wilful or otherwise by the RLATVC, their officers, employees, members, volunteers or other persons for whom the RLATVC is legally responsible.

Termination

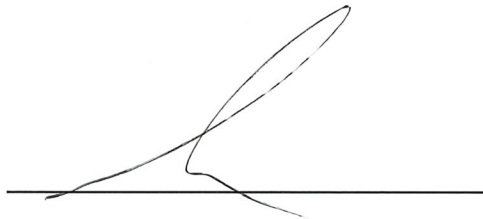
24. THAT either party may terminate this agreement within 180 days written notice. Regardless of which party provides notice of termination, during this notice period, the RLATVC will fully and dutifully implement all requirements of any approved decommissioning plan. Failure to implement the decommissioning plan in full will entitle the Municipality to carry out the work, and recover any costs from the RLATVC and/or its officers.

Administration

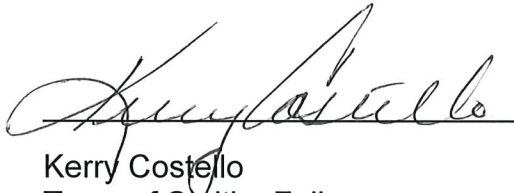
25. This agreement shall not be subject to the Arbitration Act.



Rick Gilfillen
Rideau Lakes ATV Club
President
I have authority to bind the organization



Shawn Pankow
Town of Smiths Falls
Mayor



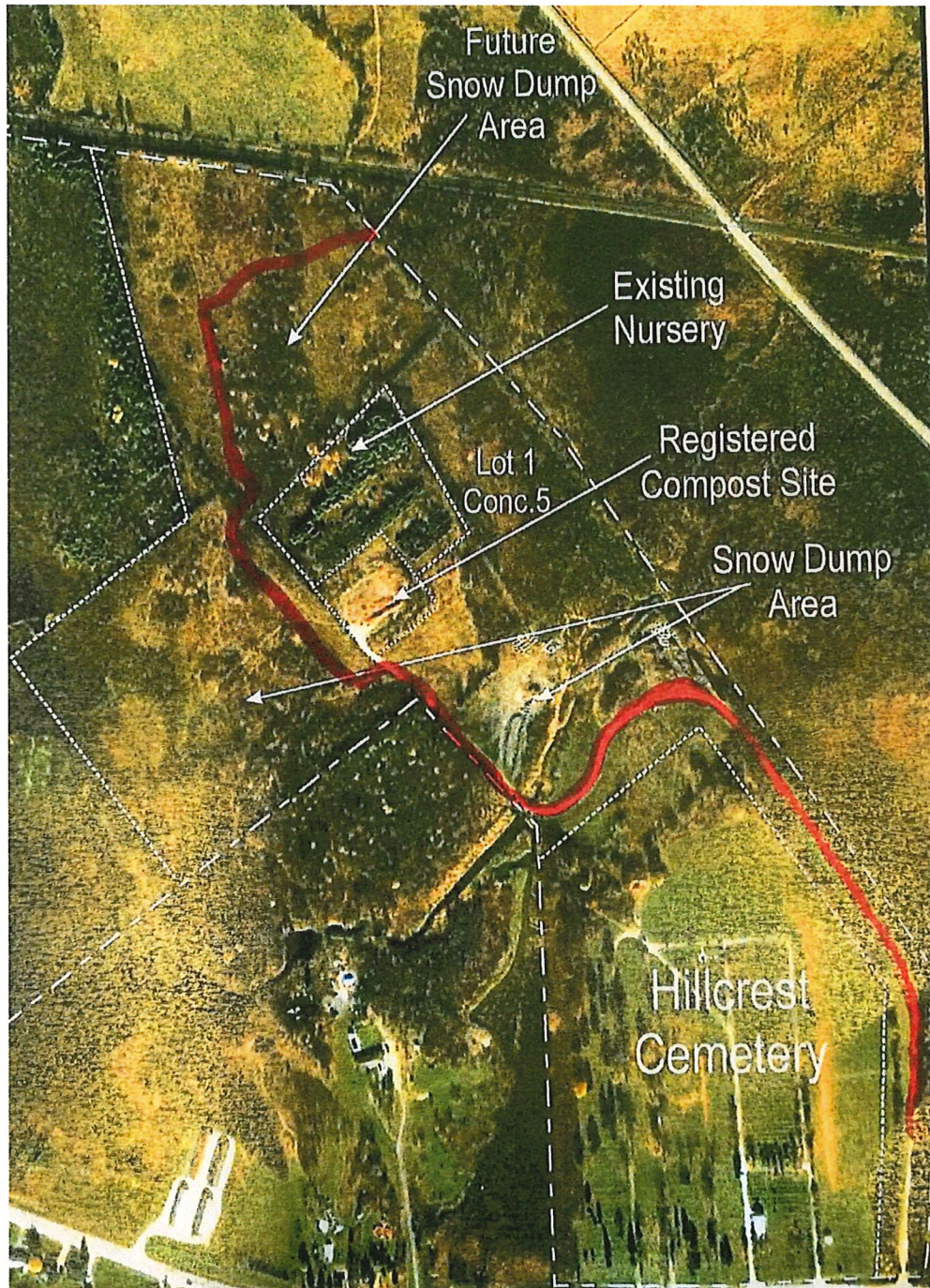
Kerry Costello
Town of Smiths Falls
Clerk

SCHEDULE "A"

Approved Recreational Trail

Parcel 1

Con 6. S. Pt. Lot 1 & 2, Conc 5, North Elmsley (compost site – 3450 Highway 43W)



Note: Trail alignment denoted in red.

Parcel 2

Former bed of the Canadian National Railway within the Lombard Street Business Park (referred to as Cataraqui Trail)



Note: Trail alignment denoted in red. (Approximately 825m)